IN THE CIRCUIT COURT '10' OF GHANA, ACCRA, HELD THIS FRIDAY, THE 25TH DAY OF APRIL 2025, BEFORE HER HONOUR EVELYN E. ASAMOAH (MRS).

SUIT NO. C2/36/2023

RICHARD NORTEY = **PLAINTIFF**

(SUING FOR HIMSELF AND ON BEHALF
OF THE ADMINSTRATORS OF ESTATE OF
JOSEPH CHARLES NORTEY)

V.

GLORIA DUA = **DEFENDANT**

MR. RICHARD V. C. ADDAI ADUENI FOR THE PLAINTIFF

MS. ADELINE SEFAKOR TAY HOLDING DR. MAURICE ANKRAH'S BRIEF FOR THE DEFENDANT

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JUDGMENT

●The plaintiff claims to be one of the administrators of the estate of the late Mr. Joseph Charles Nortey and brings this action on behalf of himself and the other two administrators. He contends that the land on which House number C15/7 is situated was acquired by his grandfather, the deceased, who died in 1982. He was succeeded by his twin sons, who are also deceased. He points out that letters of administration was granted to him and the others by the High Court on 5th April 2012. The plaintiff alleges that the defendant is unlawfully in possession and occupation of the disputed property, which was subleased to her by Mr. Robert Nortey (deceased) in July 1987 for a period of 18 years.

● According to the plaintiff, in distributing the deceased's properties, it became necessary for the administrators to demand the documents—lease and tenancy agreements—from

the house occupants. As a result, the occupants were contacted and asked to provide these documents, but they all failed to do so. The defendant was served with two letters on different occasions to establish her right to occupy the premises, but she neither acknowledged receipt of these letters nor responded to their contents. Instead, she leased the premises to third parties without the plaintiffs' consent, either in writing or orally. The plaintiff asserts that the defendant's refusal to provide documentary evidence of her right to remain in occupation of the premises from which she operates her business as 'Awo Enterprise' suggests that she is wrongfully occupying the premises and is a trespasser. He seeks the following reliefs:

- A declaration that the defendant's continued occupation of House number C15/7 Kpehe and leasing of portions thereof to others is wrongful and unlawful.
- An order for the immediate eviction of the defendant and all occupants claiming from or through her from the aforementioned house
- Mense profits
- Damages for trespass, costs, and any other reliefs which the court deems fit.

● The defendant denied the claim and stated that by a lease dated 9th May 1989, between Robert Nortey (the lawful representative and heir of the late Joseph Charles Nortey) and her, the property—house number C21/7—was leased to her for a period of 40 years, which will expire in 2029. She prays the court to dismiss the writ with punitive cost.

● The issues for determination, as set out in the application for direction filed on 5th May 2023 and adopted by the court, are as follows:

i. Whether or not House number C15/7 Kpehe Accra was acquired by the plaintiff's grandfather, which had devolved on the plaintiff and his siblings

ii. Whether or not the defendant entered into a valid lease agreement with the late Robert Nortey on 9th May 1989 in respect of the House number C15/7 Kpehe Accra (then House number C21/7)

iii. Whether or not the lease, if any, is binding on the plaintiff and his siblings

iv. Whether or not the plaintiff is entitled to the reliefs he claims.

● In the case of ***Bertha Ansah-Djan V. Pryce Kojo Thompson, The Registrar General*** [2023] DLSC16086 Civil Appeal No. J4/08/2022 dated 21st June, 2023 -Justice Aseidu JSC stated:

> "… It must be stressed also that in evaluating evidence, the duty of a trial judge is not to dwell on just a piece of evidence given by the witnesses at the trial but to consider the totality of the evidence adduced vis-à-vis the relevant law in coming to his conclusion that the evidence of a party is preferable to the evidence of another party. This act itself involves pitching one version of the evidence against the other on any particular issue. This further implies that there are, at the minimum, two versions, if not more, of the evidence to choose from with a further implication that the party whose evidence does not find favour with the court had also a story to tell except that his version of the events or transactions could not scale the burden of persuasion imposed on him by the law as compared with the evidence adduced by his opponent. This court recognised the importance of this analysis when it held in **Bisi and Others vs. Tabiri alias Asare [1987-88] 1 GLR 360** when it held that:
>
> > *"The standard of proof required of a plaintiff in a civil action was to lead such evidence as would tilt in his favour the balance of probabilities on the particular issue. The demand for strict proof of pleadings had however never been taken to call for an inflexible proof either beyond reasonable doubt or with mathematical exactitude or with such precision as would fit a jig-saw puzzle. Preponderance of*

evidence became the trier's belief in the preponderance of probability. But "probability" denoted an element of doubt or uncertainty and recognised that where there were two choices it was sufficient if the choice selected was more probable than the choice rejected. Consequently, the trial judge was justified in accepting the case of the plaintiff on the materials and money he had contributed towards the construction of the house, in spite of the discrepancies in the evidence of the first and fourth plaintiff witnesses on the quantities."

● The crucial issue in this case is: ***whether the defendant entered into a valid lease agreement with the late Robert Nortey in respect of the house number C15/7 Kpehe, Accra (formerly house number C 21/7 Kpehe, Accra), and further determine whether that agreement has expired.***

The plaintiff, in his witness statement, asserted that his grandfather, the late Charles Nortey, acquired the disputed land and constructed a building on it. He died in 1982 and was succeeded by one of his two sons, Robert Okoe Nortey, who is deceased. On 5th April 2012, letters of administration was granted to Daniel Annum Nortet, Jennifer Nortey, Richard Nortey and the plaintiff.

During the distribution of the estate, it became necessary for the administrators to request that the occupants of the premises provide evidence of their legitimate occupancy, such as tenancy/ lease agreements. Letters were served personally on the defendant but she refused to acknowledge receipts of same, let alone reply. The defendant's refusal to respond to letters and show her right to be in possession of the premises has stalled the further distribution of the deceased's estate to the beneficiaries.

According to the plaintiff, the defendant rented two shops at the front of the house, but the term granted has long since expired. The defendant has also not paid rent for the shops since the death of Robert Oko Nortey. She also rented rooms on the premises to people without informing the administrators. The plaintiff further asserted that the

document on which the defendant relies does not satisfy the requirements of a valid lease. The defendant rented a shop on the premises to a Nigerian who carried out extensive work on the premises without the consent of the administrators. She also sublet the entire premises and is rarely seen there, and the duration of the sublease and tenancy is unknown to the administrators. The plaintiff attached the letters of administration (***Exhibit A)*** and the request letters written to the defendant to present her tenancy/ lease agreement ***(Exhibit B & C)***

● The defendant, in her witness statement, acknowledged that the plaintiff is the son of her grantor, Robert Nortey. According to the defendant, she initially acquired only a portion of the land, which had two shops thereon. After he had been in possession of the shops for two years, the plaintiff's father approached her and enquired if she was interested in purchasing the bare land behind the shop building. She agreed and eventually purchased plot number C.21/7 from the plaintiff's father for 100,000 old cedis, for a period of 40 years. The plaintiff's father issued a receipt for that amount.

According to the defendant, she immediately took possession of the property and constructed a two-storey building with shops on the ground floor, while the first floor was used for offices and a workshop on the vacant land within six months. She pointed out that the deceased granted her a 15-year extension of the sublease after she provided a loan to the family of the plaintiff's father to bail him out following his arrest. The defendant claims to be the bona fide owner of the disputed property based on the indenture dated 28th July 1987, and the receipt from the plaintiff's father dated 9th May 1989. Additionally, she asserts that she holds a 15-year extension granted by the plaintiff's father for the loan she provided him.

● The **sublease** - The defendant, during cross-examination, admitted that she initially took possession of two shops, which were initially leased to Frank Appiah by her grantor.

Exhibit 1, an indenture dated 28th July 1987, was executed in respect of the two shops. In Exhibit 1, the defendant was described as a sublessee and was granted:

> ***"..all that land situate lying and being at Kpehe and attached to building No. 84 together with all easement and appurtenances whatsoever appertaining thereof for the use of the sub-lease for the residue now unexpired of the term of 20 years granted by the said lease subject henceforth to the covenants and conditions in the lease contained…"***

The unexpired term was 18 years at the time the late Mr. Nortey and the defendant executed the agreement in 1987. The sublease has expired. However, the defendant claims that she was granted an extension of the sublease and was also given another piece of land behind the shop. She claimed that she purchased the land, known as plot number C.21/7, from Mr. Robert Nortey for 100,000 old cedis for a period of 40 years.

The defendant tendered in evidence a receipt (Exhibit 2) as evidence of the said extension. Exhibit 2 is a receipt dated 8th of May 1989. The defendant was granted:

> *' All that piece or parcel of land at Kpehe and known as Plot No. C.21/7 as the same is more particularly delineated on the plan attached hereto and thereon shown edged pink to the said Awo Enterprise Limited for the construction of a store and wholesale by the said Awo Enterprise on the understanding that the term of the lease shall be 40 years certain subject to renewal on agreement between parties herein with annual rent of two thousand five hundred cedis (2,500) per annum.'*

Regarding the two shops initially leased to her, she claimed that she was granted a 15-year extension on the term of the sublease after she lent money to Mr. Robert Northey's family to help bail him out following his arrest and imprisonment. However, she failed to provide evidence to support her claim. This is what transpired during the defendant's cross-examination by the plaintiff's counsel.

…

Q: *I am putting to you that when you took a sublease of the two stores, in effect, you were given a term of 18 years from the date you took the sublease, effective 1987?*

A: *Yes. After I took the 18 years from Frank Appiah, I sat with the landlord, his mother, and a lawyer, and paid for an extension which included the bare land behind the two shops.*

Q: *I am putting it to you that your evidence that the landlord took money from you to extend the term granted to you in Exhibit 1 is incorrect?*

A: *That is not true.*

…

Q: *I am putting it to you that nowhere in Exhibit 2 is reference made to the sub-lease between you and Frank Appiah?*

A: *That is not true – Frank Appiah is no more involved in this transaction. I am now dealing directly with the landlord. That is why Frank Appiah introduced me to the landlord.*

Q: *I am putting it to you that Exhibit 1 captured every issue you discussed with Frank Appiah and the landlord with respect to the sub-lease?*

A: *That is not true.*

Q: *I am putting it to you that Exhibit 2 dealt exclusively with the bare land you took on lease with the land lord?*

A: *That is not so – The shops are the only access to the land therefore the agreement included the shops and the bare land.*

…

Q: *I am putting it to you that, with respect to the two stores that you took on sublease from Frank Appiah, the term granted has long expired?*

A: *That is not true.*

Q: *In fact, it expired in 2005?*

A: *That is not true – I wouldn't still be in possession if the term had truly expired.*

…

***Q**:* *You said you gave a loan to Oko Nortey?*

***A**:* *Yes.*

Q: *Where is the document covering that loan?*

A: *The documents are with my lawyer.*

Q: *I put it to you that you gave no loan whatsoever to the landlord?*

A: *That is not true – the landlord was then incarcerated in Nsawam.*

Q: *What you have as evidence that you took a lease of the bare land from the landlord is exhibit 2?*

A: *Yes. There is also another document that states 24 years.*

Q: *I am putting it to you that there is no such document existing?*

***A**:* *It exist*

…

The evidence shows that the subject matter of the indenture (***Exhibit 1)*** differs from that of the receipts ***(Exhibit 2).*** The receipt related to plot number C, 21/7, and the purpose of the agreement was for the defendant to construct *'a shop and a wholesale by the said Awo Enterprise Limited'*. The indenture was executed with respect to a land attached to building number 84. No mention was made in the receipt of the two shops.

● ***The Loan*** - The defendant alleged that she loaned money to her grantor, which led to the extension of the shop sublease. However, she was unable to produce any evidence to support her claim. She mentioned that the document regarding the extension exist but did not submit it as evidence.

In the case of **Asomdwee Group Limited Tema V. Airland Company Limited, Chao Eheng, Sha Wang And Deli Yin [2020]DLHC8943, the court ruled:**

"As it is the Respondent who asserts this fact, it ought to prove same by proper legal means within the intendment of the decision of the courts in cases such as ***Majolagbe v Larbi & Ors*** ***(1959) GLR 190 – 195 at 192*** *and the unreported case of* ***Khoury & Anor v Richter*** ***(1958)*** *by for instance, "… producing documents, description of things, and/or reference to other facts, instances, or circumstances …" … the burden placed on the Respondent to prove its assertions by a preponderance of probabilities. To the extent that these allegations are not backed by cogent and credible facts, they remain pure conjecture …* ***Mass Projects Ltd (No.2) v Standard Chartered Bank v Yoo Mart Ltd (No. 2) [2013 – 2014] 1 SCGLR 309*** *that "[H]igh sounding phrases and allegations of fraud, forgery and illegality etc remain mere allegations if they have not been proven in law …"*

The court finds that the sublease, in respect of the two shops, expired in 2005. However, she has been in possession of them without paying rent. In these circumstances, she is ordered to vacate the two shops. Judgment is entered for the plaintiff on the reliefs stated in the writ of summons and statement of claim. Mense profit of GHC 800 per month for the shops from 2006 to April 2025. Cost of GHC 7,000 against the defendant.

(SGD)

H/H EVELYN E. ASAMOAH (MRS)

CIRCUIT COURT JUDGE